



[School/Organisation]

[Organisation Name]

Redaction Guidelines

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If you are reading a printed version of this document you should check the Information Management pages on [the school network] to ensure that you have the most up-to-date version.

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Introduction	4
What is redaction?	4
Scope	4
Why redact?	4
Questions?	4
Identifying what to redact	5
Redaction Methods	6
Our recommended approach	6
Hard Copy files	6
Cover-up tape	6
Blacking/whiting out	6
Photocopier with redaction facilities	7
Electronic Files	7
Document Metadata	7
Traditional redaction	7
Conversion	8
Exemptions	8
Crime and taxation	8
Information required to be disclosed by law or in connection with legal proceedings	8
Legal Professional Privilege	9
Confidential References	9
Exam Scripts and Marks	9
Health, Education and Social Work Data	9
Serious Harm	9
Employee personal data	9
Child Abuse Data	9
Management Data	10

Introduction

This guidance has been produced for reference when removing content from data provided under a request for information, such as a Subject Access Request (SAR) or Freedom of Information (FOI) request.

In order to comply with a SAR or FOI request, schools should consider whether it is possible to comply with the request without disclosing information that identifies another individual. If this is not possible, you do not have to disclose the other individual's information except where the other individual consents to the disclosure or it is reasonable to comply with the request without that individual's consent. Where you do not have consent, and it is not reasonable to disclose the other individual's information, you must protect their data protection rights, and this Personally Identifiable Information (PII) must be removed by editing the document before release.

What is redaction?

Redaction is the separation of disclosable from non-disclosable information by blocking out individual words, sentences or paragraphs or the removal of whole pages or sections prior to the release of the document. In the paper environment, some organisations will know redaction as extracts when whole pages are removed or deletions where only a section of text is affected.

Scope

This guidance is for all employees who have the responsibility for preparing a response to a SAR or FOI.

Why redact?

Redaction is carried out in order to edit exempt details from a document. Use it when one or two individual words, a sentence or paragraph, a name, an address or a signature needs to be removed.

Questions?

If you have questions about what to redact or how, contact **dpo@dataprotection.education** as early in your project as possible. Not seeking advice prior to undertaking redaction may result in significant reworking being required. As DPO, we offer advice and guidance and will review.

If you would like a quotation for DPE to complete your redaction on your behalf, please contact dpo@dataprotection.education

Identifying what to redact

When deciding what to redact, all information relating to an individual who is not the data subject must be removed.

This includes:

- Name
- Address
- Date of birth
- Email address
- Phone number
- Job title (if this is an identifier of them directly, i.e. the Headteacher)
- Signature
- Health data (i.e. information about sick leave or an operation)
- Photographs/Images
- Opinions

When redacting, it is important to:

- Have a staff member who is knowledgeable about the document involved in the process. They will be able to help determine what is exempt as they know the information best
- Only redact the exempt material and not a whole paragraph for 2 or 3 words that cannot be disclosed
- Ensure electronic redaction cannot be removed or reversed
- Ensure personal information cannot be deduced from the remaining data (for example removing only another individual's name may not be sufficient as they may still be identifiable from the rest of the information)
- Check other records of the same document to ensure consistent redaction

When the redaction necessary to protect someone else's personal data is so significant that it renders the document unintelligible, then providing a summary is acceptable.

There may be occasions when you are unable to sufficiently redact or summarise the data without disclosing the personal information of a third party. In circumstances such as these, it is important to undertake a balancing of rights test to decide what should or should not be disclosed. Your Data Protection Officer should be able to provide support when carrying out this assessment.

Personal data relating to another individual can also be released if their consent has been obtained. Whilst an organisation is not obligated to ask for consent if they do not feel it appropriate, it should be considered.

Redaction Methods

There is a range of redaction methods, and any may be used effectively according to what best suits the organisation concerned. Your options may be dictated by your software or your stationery.. All of the above may depend on issues such as the structure and content of the document, the degree of confidentiality, and the cost and time available.

Whichever method is employed, the end result must ensure that the redacted material cannot be seen or guessed due to incomplete redaction. This means checking to make certain that words cannot be made out when the document is held up to the light or that the ends, top or bottom of text are not visible.

Our recommended approach

A redaction tool is available on the Data Protection Education Knowledge Bank for all of our customers. The tool allows the user to redact any PDF permanently within the browser digitally. To access the tool, please use this link and follow the instructions shown within the tool itself:
<https://dataprotection.education/document-redaction-tool/pdftron?tmpl=component>

Hard Copy files

Cover-up tape

The simplest form of redaction is to use a high-quality cover-up tape that can be placed on the original documents over the areas to be redacted, taking care that no parts of words are showing. By making a photocopy of the redacted text, an access version is produced and ready for presentation.

The tape is white and acts in much the same way as if using correction fluid, but can be reused several times. It is available in 1/6 inch for a 10-12 font typewritten line, 1/3 inch for two typewritten lines and 1 inch for general corrections.

Blacking/whiting out

Another simple solution is to photocopy the original document and use a black marker pen to block out the sensitive material. The redacted version should then be photocopied again to produce an access version. A further photocopy is necessary as information redacted using a marker pen can be read when held up to the light.

The same process can be employed by substituting a good-quality correction fluid for a marker pen. Ensure that no redacted text is visible before making the second photocopy, which again is necessary as correction fluid can be easily removed.

Photocopier with redaction facilities

Photocopiers are available, which, in addition to normal copying functions, also have facilities to remove marked-out areas on a document automatically. They provide a secure method of redaction, as there is no possibility of the removed text being visible after copying. However, they are limited in their effectiveness as the programmes can, at present, only remove paragraphs and stand-alone areas of text such as addresses or signatures. They cannot reliably detect small areas of data, such as sentences or individual words.

A photocopier of this nature would probably be cost-effective only for organisations carrying out a large volume of redaction, where savings on more conventional materials would outweigh the cost of investing in such a copier.

Electronic Files

The redaction of electronic records should always be carried out in accordance with the following principles:

- Never redact the original or master version of an electronic record - redaction must always be carried out on a new copy of the record, either in paper or electronic format.
- Redaction must irreversibly remove the required information from the redacted copy of the record.
- Carry out electronic redaction in a controlled and secure environment that provides access only to those trained and authorised to carry out redaction.
- Delete all intermediary stages of the redaction process. Only the original record and the appropriately redacted copy should be retained.

Document Metadata

Some documents may contain personal data in the metadata. You can normally check and remove this in the properties/information tab within your software.

Traditional redaction

For electronic records, which can be printed as a hard copy, traditional redaction techniques, as described above, can be applied. Either the record may be printed, and redaction carried out on the printed copy, or the information may be redacted from an electronic copy, which is then printed. If the redacted copy is required in electronic format, this can be created by scanning the redacted paper copy into an appropriate format.

Our recommended approach is to use the DPE Knowledge Bank redaction tool on an electronic pdf document.

Conversion

An electronic record may be redacted through a combination of information deletion and conversion to a different format. Certain formats, such as plain ASCII text files, contain displayable information only. Conversion to this format will, therefore, eliminate any information that may be hidden in non-displayable portions of a bit stream.

Exemptions

When responding to a SAR, it is important to remember that there are a number of exemptions that could apply to the data. We have included a list of these exemptions below and sought to expand upon those which we feel are most likely to apply within an education setting. When considering these exemptions, it is important to remember that they are the exception, and it is important to document your reasoning in the event that you do rely upon one of these exemptions for future reference.

When disclosing any personal information, it is important to give consideration to the level of confidentiality when it was obtained. Whilst there is no specific exemption for confidentiality, it is important to take it into account when deciding whether the disclosure is appropriate.

Crime and taxation

Organisations can process personal data for the purposes of:

- the prevention and detection of crime;
- the apprehension or prosecution of offenders; or
- the assessment or collection of a tax or duty or imposition of a similar nature.

But the exemption only applies to the extent that complying with these provisions would be likely to prejudice your purposes of processing. If this is not so, you must comply with the UK GDPR as normal.

Information required to be disclosed by law or in connection with legal proceedings

This exemption can apply if you are required by law or court order, to disclose personal data to a third party.

This exemption can also apply if it is necessary for you to disclose personal data for the purposes of or in connection with

- legal proceedings, including prospective legal proceedings;
- obtaining legal advice; or
- establishing, exercising or defending legal rights.

Legal Professional Privilege

This exemption applies if you process personal data:

- to which a claim to legal professional privilege (or confidentiality of communications in Scotland) could be maintained in legal proceedings; or
- in respect of which a duty of confidentiality is owed by a professional legal adviser to their client.

Confidential References

References that were provided confidentially do not have to be disclosed as part of a Subject Access Request in these circumstances-

- education, training or employment of an individual
- placement of an individual as a volunteer
- appointment of an individual to office
- provision by an individual of any service

Exam Scripts and Marks

Information provided by candidates does not have to be disclosed. This means exam papers are not required to be shared however, comments made by anyone marking the paper are not exempt.

This type of request carries different time scales for responding-You must provide the information:

- within five months of receiving the request; or
- within 40 days of announcing the exam results, if this is earlier.

Health, Education and Social Work Data

Serious Harm

This exemption only applies when complying with the right of access would be likely to cause serious harm to the physical or mental health to any individual.

Employee personal data

Those who work in health, social care or education are exempt from the protection of their personal data when disclosing information under a subject access request. This means that the names, contact details, opinions etc of those employees should not be redacted.

Child Abuse Data

An organisation is not required to share child abuse data where it would not be in the best interest of whom the abuse data is concerning. This exemption applies where the request is from someone with parental responsibility for an individual aged under 18 or someone

appointed by the court to manage the affairs of an individual who is incapable of managing their own affairs. It also only applies in England, Wales and Northern Ireland. It cannot apply in Scotland.

Management Data

If personal data is being processed for management forecasting or management planning in relation to a business or other activity, then it does not need to be disclosed. But the exemption only applies when disclosure would be likely to prejudice the conduct of the business or activity.

For more information on exemptions, please refer to the ICO-

<https://ico.org.uk/for-organisations/guide-to-data-protection/guide-to-the-general-data-protection-regulation-gdpr/exemptions/#ex1>